

Anup Kumar Kesharwani v. State of U.P. & Others

Allahabad High Court · Division Bench · 24 August 2012 · Writ - C No. 34472 of 2012 · **Writ petition disposed of; petitioner to file objections to the provisional assessment dated 10.8.2011 on or before 17.9.2012; respondent no. 4 to hear and pass a reasoned speaking order by 30.10.2012 in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, served personally and by registered speed post; final assessment dated 24.9.2011 and recovery including the citation dated 18.2.2012 quashed without prejudice to a fresh recovery certificate after that order; if objections are not filed in time, this order stands automatically vacated**

HEADNOTE

Where a consumer challenges a theft provisional assessment and a recovery citation, saying that objections to the proposed assessment were filed but no final assessment or demand notice was served, and the licensee disputes receipt of those objections while asserting that a reduced final assessment was sent by courier, the writ court, on the licensee's statement, will not let the disputed final assessment and recovery stand. The consumer is directed to file fresh objections to the provisional assessment within a fixed time; the licensee is to afford a hearing and pass a reasoned speaking order in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, served personally and by registered speed post. The final assessment and the recovery proceedings, including the recovery certificate and the citation, are quashed without prejudice to a fresh recovery certificate after that order. If objections are not filed in time, the order stands automatically vacated. The Court did not decide whether theft was made out, the quantum of the assessment, or whether the earlier objections had in fact been received.

FACTUAL SUMMARY

Anup Kumar Kesharwani filed Writ-C No. 34472 of 2012 against the State of U.P. and others, including the electricity corporation as respondent no. 4, seeking to quash an assessment bill dated 10 August 2011 and the consequent recovery. Checking at his premises on 21 July 2011 allegedly detected theft of electricity. A proposed assessment bill dated 10 August 2011 made a provisional assessment of Rs. 1,11,915. He pleaded that he submitted objections on 25 August 2011, but that he never received a final assessment order or a demand notice and was served only with a citation to appear dated 18 February 2012.

After listings on 23 July 2012 and 22 August 2012 for the corporation to obtain instructions, counsel for respondent no. 4 stated that the 25 August 2011 objections were never received, so there was no occasion to pass any order on them, and that a final assessment of Rs. 91,915 had been sent by courier by a communication dated 24 September 2011. Satya Poot Mehrotra and Het Singh Yadav, JJ. disposed of the writ on 24 August 2012.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Disputed receipt of objections and of the final theft assessment: final assessment and recovery quashed; fresh objections to be heard by a speaking order

QUESTION

Where the consumer says objections to a provisional theft assessment were filed and no final assessment was served, and the licensee says those objections were never received and a final assessment was sent by courier, may the final assessment and recovery citation stand?

HOLDING

No. Checking on 21.7.2011 allegedly detected theft. A proposed assessment bill dated 10.8.2011 made a provisional assessment of Rs. 1,11,915. The petitioner said he filed objections on 25.8.2011 and received neither a final assessment nor a demand notice, only a citation to appear dated 18.2.2012. The licensee said those objections were never received and a final assessment of Rs. 91,915 was sent by courier by communication dated 24.9.2011. On that dispute, and on the licensee's statement, the Court directed the petitioner to submit fresh objections to the 10.8.2011 provisional assessment on or before 17.9.2012; respondent no. 4 to give a reasonable opportunity of hearing and pass a reasoned speaking order by

30.10.2012 in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, served personally and by registered speed post (AD). The 24.9.2011 final assessment and the recovery proceedings, including the recovery certificate and the citation dated 18.2.2012, stand quashed without prejudice to a fresh recovery certificate after that order. If objections are not filed in time, the order stands automatically vacated.

¶ 6-8

QUALIFIER

The directions rest on the licensee's statement of a dispute as to receipt of objections and of the final assessment, not on an independent finding that courier was not valid service.

FLAG The Court cited the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, but no clause number. The demand is a theft assessment (checking on 21.7.2011; theft allegedly detected; proposed assessment bill). Keyed to Clause 8.1 as the theft-assessment procedure (provisional bill, objections, hearing, then final assessment). Source PDF compiles listing orders of 23.7.2012 (Ashok Bhushan and Ram Surat Ram (Maurya), JJ.) and 22.8.2012 (same Bench as the disposal) plus the 24.8.2012 disposal; pins are narrative blocks of that disposal (unnumbered). Respondent no. 4 is the assessing licensee; the cause title is State of U.P. and others.

PRINCIPLE TAGS

opportunity-before-final-assessment The consumer said objections to the 10.8.2011 provisional assessment had been filed and no final assessment was served; the licensee denied receipt of those objections and asserted courier despatch of a 24.9.2011 final assessment. The Court would not let that disputed final assessment stand: fresh objections, a hearing, and a speaking order were directed. ¶ 4, 6-8

assessment-provisional-objection-speaking-order The petitioner was directed to file objections to the 10.8.2011 provisional assessment by 17.9.2012; respondent no. 4 was to hear him and pass a reasoned speaking order by 30.10.2012 in accordance with the Electricity Act, 2003 and the Supply Code, 2005, served personally and by registered speed post. ¶ 8

recovery-citation-quashed-and-remitted-for-fresh-order The 24.9.2011 final assessment and the recovery proceedings, including the recovery certificate and the citation dated 18.2.2012, were quashed without prejudice to a fresh recovery certificate after the speaking order on objections. ¶ 8

speaking-order-required-for-theft-assessment After alleged theft detected on 21.7.2011, the licensee was directed to pass a reasoned speaking order on fresh objections in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ 2, 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT SUBMITTED OBJECTIONS ON 25.8.2011, AND WHETHER RESPONDENT NO. 4 RECEIVED THEM

The parties were in dispute; the Court directed fresh objections rather than deciding that fact. ¶ 3, 6-8

NOT DECIDED — WHETHER THE FINAL ASSESSMENT OF RS. 91,915 DATED 24.9.2011 WAS SERVED BY COURIER

The petitioner denied receipt of any final assessment or demand notice; the licensee asserted courier despatch. Not resolved. ¶ 4, 7

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS DETECTED ON 21.7.2011, AND THE CORRECTNESS OR QUANTUM OF THE RS. 1,11,915 PROVISIONAL / RS. 91,915 FINAL ASSESSMENT

Left to the speaking order on fresh objections. ¶ 2, 7-8

NOT DECIDED — WHETHER ANY NUMBERED CODE CLAUSE (8.1 OR OTHERWISE) HAD BEEN FOLLOWED

The Court named the Act and the Supply Code, 2005 without a clause number. ¶ 8